



DECLARATIONS
EXCESS INSURANCE POLICY

ACCOUNT NUMBER	723095		
COVERAGE PROVIDED BY (hereafter Insurer)	Continental Casualty Company		
POLICY NUMBER	278329783		
Item 1: NAMED ENTITY AND PRINCIPAL ADDRESS		PRODUCER	
HARBOR POINT WORKS 9581 Millbrook , 20th Floor Cortland, NY 13045		PROFESSIONAL RISK FACILITIES PO BOX 4733 7945 COMMERCE MONROE, NY 10950-6031	
Attn:			

Item 2. **Policy Period:** 11/17/2025 To 9/2/2026
12:01 a.m. Standard Time at the Principal Address cbgehp hx Njex 2.

Item 3. **Limit of Liability**
\$5,000,000 maximum aggregate Limit of Liability under the Policy

Item 4. Schedule of **Underlying Insurance:**
A. **Followed Policy**

Name of Carrier	Policy No	Kauqcg	Ded/Ret Amount
Dellwood Specialty Granite Row Granite Row	DDP0000004-00	\$5,000,000	\$50,000

B. **Underlying Excess Policies:** *** SEE ATTACHED SCHEDULE ***

Item 5. Policy Premium \$13,662

Item 6. Notices of Claims:
CNA – Claims Reporting
P.O. Box 1980
Warwick, IL 10990-6290
Email address: edward.halloway@example.net
Fax Number: 866-773-7504

All other Notices:
Fairmount Global Specialty Lines
CNA Granite Row
8477 Harbor – 8th Floor
Monroe, NY 10950

Item 7. Endorsements forming a part of this Policy at inception:

GSL-30803-ES	2010-11-01	Amend Changes To Underlying Insurance
CNA-90267-BQ	2016-07-01	Amend Follow Form Excess Coverage Section Endorsement (Accept Payment By Any Source)
GSL-28886-VG	2015-07-01	Inapplicability Of Followed Policy Coverage Sections (Affirmative List Of Followed Coverage Sections)
GSL-7194-XX	2022-02-01	Prior Acts Exclusion Endorsement
CNA-23704-ZW	2014-10-01	Directors And Officers Excess And Difference In Conditions Endorsement Refuses To Indemnify
CNA-95078-MF	2015-03-01	Cap On Losses From Certified Acts Of Terrorism Endorsement
CNA-80630-UT	2021-01-01	Notice Offer Of Terrorism Coverage Disclosure Of Premium Confirmation Of Acceptance

These Declarations, along with the completed and signed Application, the Policy, and any written endorsements attached thereto shall constitute the contract between the Insureds and the Insurer.

Authorized Representative:

A handwritten signature in blue ink, appearing to read "D. W.", is positioned to the right of the "Authorized Representative:" label.

Date: November 18, 2025

UNDERLYING EXCESS POLICY SCHEDULE

Name of Carrier		Policy No.	Kauqcg	Excess of
Harbor Point Contracting	an AIG Company	069960094-00	\$5,000,000	\$5,000,000



EXCESS INSURANCE POLICY

Words defined in the Followed Policy have the same meaning in this Policy even if not defined herein. In consideration of the payment of the premium and in reliance upon the applications submitted to the Insurer or any insurer of the Underlying Insurance, and any other material submitted in connection with such applications (all of which are deemed attached hereto and made a part hereof) the Insurer and the Insureds agree as follows:

I. FOLLOW FORM EXCESS COVERAGE

The Insurer shall provide coverage in accordance with all of the terms, conditions and limitations (including, but not limited to the exclusions and notice requirements) of the policy scheduled in Item 4.A. of the Declarations (hereafter "**Followed Policy**") except as otherwise set forth herein. Coverage hereunder shall attach only after all of the aggregate Limits of Liability, as set forth in Item 4. of the Declarations have been exhausted through payment of covered loss under all policies scheduled in Item 4. of the Declarations (hereafter "**Underlying Insurance**") by or on behalf of the insurers of such **Underlying Insurance**, or by or on behalf of the Insureds. The risk of uncollectibility of any **Underlying Insurance** (in whole or in part), whether because of financial impairment or insolvency of an underlying insurer or for any other reason, is expressly retained by the Insureds and is not insured ASHCROFT AUTOMOTIVE SERVICES

II. LIMIT OF LIABILITY

The amount set forth in Item 3. of the Declarations shall be the maximum aggregate Limit of Liability of the Insurer for all loss under this Policy, regardless of the number of claims made against the Insureds or the time of payment and regardless of whether or not an extended reporting period applies. If the Limit of Liability under this Policy is exhausted by payment of loss, the Insurer's obligations under this Policy shall be deemed completely fulfilled and extinguished.

III. CHANGES TO UNDERLYING INSURANCE/DEPLETION OF SUB-LIMITS

If, subsequent to the inception date of this Policy, there is a change to any **Underlying Insurance** which expands coverage, then this Policy shall become subject to such change only if the Insurer agrees thereto by written endorsement to this Policy. If any loss under any **Underlying Insurance** is subject to a sub-limit, then this Policy provides no coverage excess of such **Underlying Insurance** sub-limit, but the **Underlying Insurance** shall be deemed depleted by payment of any such sub-limit.

IV. INSURER RIGHTS/COOPERATION CLAUSE

The Insurer has the same rights and protections as has the insurer of the **Followed Policy** and has the right, but not the obligation, at its sole discretion, to elect to participate in the investigation, settlement, prosecution or defense of any claim reasonably likely to attach to and be covered under this Policy or any **Underlying Insurance**, even if the **Underlying Insurance** has not been exhausted. The Insureds shall cooperate with the Insurer in such investigation, settlement, prosecution or defense and shall do nothing that prejudices the Insurer's position or rights of recovery.

V. NOTICES

Where notice is permitted or required by the **Followed Policy**, the Insureds have the same rights and obligations to notify the Insurer under this Policy, except that such notice shall be given to the Insurer at the applicable address specified in Item 6. of the Declarations.

IN WITNESS WHEREOF, the Insurer has caused this Policy to be executed by its Chairman and Secretary, but this Policy shall not be binding upon us unless completed by the attachment of the Declarations:

Chairman

Secretary



AMEND CHANGES TO UNDERLYING INSURANCE

In consideration of the premium charged, it is understood and agreed that Section **III. CHANGES TO UNDERLYING INSURANCE/DEPLETION OF SUB-LIMITS** is amended by deleting the first sentence in its entirety and replacing it as follows:

If, subsequent to the inception date of this Policy, there is a change to any **Underlying Insurance** which expands coverage, then this Policy shall become subject to such change only if and to the extent the Insurer agrees thereto in writing, prior to the effective date of such changes, and only if the Named Entity pays any additional premium required by the Insurer.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**AMEND FOLLOW FORM EXCESS COVERAGE SECTION ENDORSEMENT
(ACCEPT PAYMENT BY ANY SOURCE)**

It is understood and agreed that the Section entitled **FOLLOW FORM EXCESS COVERAGE**, the second sentence is deleted in its entirety and replaced with the following:

Coverage hereunder shall attach only after all of the aggregate Limits of Liability, as set forth in Item 4. of the Declarations have been exhausted through payment of covered loss under all policies scheduled in Item 4. of the Declarations (hereafter "**Underlying Insurance**") by or on behalf of the insurers of such **Underlying Insurance**, or by or on behalf of the Insureds, or by any other source.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**INAPPLICABILITY OF FOLLOWED POLICY COVERAGE SECTIONS
(AFFIRMATIVE LIST OF FOLLOWED COVERAGE SECTIONS)**

It is understood and agreed that the section entitled **FOLLOW FORM EXCESS COVERAGE** is deleted in its entirety and replaced with the following:

FOLLOW FORM EXCESS COVERAGE

The Insurer shall provide coverage in accordance with all of the terms, conditions and limitations (including, but not limited to the exclusions and notice requirements) of the following Coverage Sections of the policy scheduled in Item 4.A. of the Declarations (hereafter "**Followed Policy**") except as otherwise set forth herein.

Coverage Sections

Directors and Officers Liability

This Policy shall follow no other Coverage Sections of the **Followed Policy**.

Coverage hereunder shall attach only after the aggregate Limits of Liability for any Coverage Section listed above have been exhausted through payment of covered loss under all policies scheduled in Item 4. of the Declarations (hereafter "**Underlying Insurance**") by or on behalf of the insurers of such **Underlying Insurance**, or by or on behalf of the Insureds, but such coverage under this Policy shall apply solely with respect to such Coverage Section.

The risk of uncollectibility of any **Underlying Insurance** (in whole or in part), whether because of financial impairment or insolvency of an underlying insurer or for any other reason, is expressly retained by the Insureds and is not insured by or assumed by the Insurer.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



PRIOR ACTS EXCLUSION ENDORSEMENT

In consideration of the premium, the Policy is amended to add the following Section:

- **EXCLUSION**

This Policy does not provide coverage for any wrongful act occurring, in whole or in part, prior to 9/2/2025, or any other wrongful act, occurring on or subsequent to 9/2/2025 which, together with a wrongful act, occurring prior to 9/2/2025, would be considered "**Interrelated Wrongful Acts**."

As used in this exclusion, "**Interrelated Wrongful Acts**" means any wrongful acts which are logically or causally connected by reason of any common fact, circumstance, situation, transaction or event.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



**DIRECTORS AND OFFICERS EXCESS AND DIFFERENCE IN CONDITIONS ENDORSEMENT
REFUSES TO INDEMNIFY
(Recognizes Insureds Payments and "DIC within the DIC With Covered Removed")**

In consideration of the premium charged, it is understood and agreed as follows:

1. Section **I. FOLLOW FORM EXCESS COVERAGE** is deleted in its entirety and replaced as follows:

The Insurer shall provide coverage in accordance with all of the terms, conditions and limitations (including, but not limited to the exclusions and notice requirements) of the policy scheduled in Item 4.A. of the Declarations (hereafter "**Followed Policy**") except as otherwise set forth herein. Coverage hereunder shall attach only after all of the aggregate Limits of Liability, as set forth in Item 4. of the Declarations have been exhausted through payment of loss under all policies scheduled in Item 4. of the Declarations (hereafter "**Underlying Insurance**") by or on behalf of the insurers of such **Underlying Insurance**, or by or on behalf of the Insureds. In no event shall this Policy provide broader coverage than is provided by the most restrictive terms of the **Followed Policy** except with respect to a **DIC Event**.

This Policy shall drop down to provide payment for loss if an insurer of the **Underlying Insurance** is unable to pay solely because of a **DIC Event**. Such payment shall be excess of the **Underlying Insurance** (other than the policy issued by the financially insolvent insurer).

2. The Policy is amended to add the following new definitions:

DIC Event means:

- i. An event, including the refusal or failure to indemnify an insured, which causes the **Followed Policy** and/or any other **Excess DIC Insurance** to drop down below its stated attachment point in accordance with and subject to the **Followed Policy's** terms, conditions, and exclusions;
- ii. The **Financial insolvency** of the **Followed Policy's** Insurer and/or any other Insurers of **Excess DIC Insurance**, wherein the Limits of Liability of the **Followed Policy** and any other **Excess DIC Insurance** shall be considered exhausted; or,
- iii. The insurer of the **Followed Policy** or any **Excess DIC Insurance** refuses to indemnify the **Insureds** as required under the terms of such **Followed Policy** or such **Excess DIC Insurance**.

Excess DIC Insurance means any underlying Directors and Officers Liability Excess and Difference-In-Condition Insurance policies that are excess of the **Followed Policy**.

Financial Insolvency means the: (i) appointment by any state or federal official, agency or court of a receiver, conservator, liquidator, trustee, rehabilitator or similar official to take control of, supervise, manage or liquidate an entity; or (ii) the entity becoming a debtor-in-possession pursuant to the United States bankruptcy law, and as to both (i) or (ii), the equivalent status outside the United States of America.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM ENDORSEMENT

It is understood and agreed as follows:

Whenever used in this endorsement, 1) "we" means the insurer listed on Declarations or the Certificate of Insurance, as applicable; and 2) "you" means the first person or entity named on the Declarations or the Certificate of Insurance, as applicable.

A. Cap on Certified Terrorism Losses

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security and the Attorney General of the United States, to be an act of terrorism pursuant to the Terrorism Risk Insurance Act, as extended and reauthorized (the "Act"). The criteria contained in the Act for a "certified act of terrorism" include the following:

1. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

If aggregate insured losses attributable to terrorist acts certified under the Act exceed \$100 billion in a calendar year (January 1 through December 31) and we have met our insurer deductible under the Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by

IRONVALE CONTRACTING

B. Application of Exclusions

The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any loss which would otherwise be excluded under this Policy, such as losses excluded by the Nuclear Hazard Exclusion or the War And Military Action Exclusion.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



IMPORTANT INFORMATION

NOTICE - OFFER OF TERRORISM COVERAGE;

DISCLOSURE OF PREMIUM

THIS NOTICE DOES NOT FORM A PART OF THE POLICY, GRANT ANY COVERAGE OR CHANGE THE TERMS AND CONDITIONS OF ANY COVERAGE UNDER THE POLICY.

As used herein, 1) "we" means the insurer listed on the Declarations or the Certificate of Insurance, as applicable; and 2) "you" means the first person or entity named on the Declarations or the Certificate of Insurance, as applicable. You are hereby notified that under the Terrorism Risk Insurance Act, as extended and reauthorized ("Act"), you have a right to purchase insurance coverage of losses arising out of acts of terrorism, as defined in Section 102(1) of the Act, subject to all applicable policy provisions. The Terrorism Risk Insurance Act established a federal program within the Department of the Treasury, under which the federal government shares, with the insurance industry, the risk of loss from future terrorist attacks.

This Notice is designed to alert you to coverage restrictions and to certain terrorism provisions in the policy. If there is any conflict between this Notice and the policy (including its endorsements), the provisions of the policy (including its endorsements) apply.

CHANGE IN THE DEFINITION OF A CERTIFIED ACT OF TERRORISM

The Act applies when the Secretary of the Treasury certifies that an event meets the definition of an act of terrorism. Originally, the Act provided that to be certified, an act of terrorism must cause losses of at least five million dollars and must have been committed by an individual or individuals acting on behalf of any foreign person or foreign interest to coerce the government or population of the United States. However, the 2007 re-authorization of the Act removed the requirement that the act of terrorism must be committed by or on behalf of a foreign interest, and now certified acts of terrorism may encompass, for example, a terrorist act committed against the United States government by a United States citizen, when the act is determined by the federal government to be "a certified act of terrorism."

In accordance with the Act, we are required to offer you the ability to purchase coverage for losses resulting from an act of terrorism that is certified under the federal program. The other provisions of this policy, including nuclear, war or military action exclusions, will still apply to such an act.

DISCLOSURE OF FEDERAL PARTICIPATION IN PAYMENT OF TERRORISM LOSSES

The Department of the Treasury will pay a share of terrorism losses insured under the federal program. Beginning in 2020, the federal share equals 80% of that portion of the amount of such insured losses that exceeds the applicable insurer retention.

TALLGRASS MECHANICAL

If aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year (January 1 through December 31), the Treasury shall not make any payment for any portion of the amount of such losses that exceeds \$100 billion.



Policy Holder Notice – Country Wide

Further, this coverage is subject to a limit on our liability pursuant to the federal law where, if aggregate insured losses attributable to terrorist acts certified under the Act exceed \$100 billion in a calendar year (January 1 through December 31) and we have met our insurer deductible under the Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion. In such case, insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

CONFIRMATION OF ACCEPTANCE OF COVERAGE

In accordance with the Act, we offered you coverage for losses resulting from an act of terrorism that is certified under the federal program. This notice confirms that you have chosen to accept our offer of coverage for certified acts of terrorism. The policy's other provisions, including nuclear, war or military action exclusions, will still apply to such an act. The premium charge for terrorism coverage, if any, is shown separately on the Declarations or the Certificate of Insurance, as applicable.